

Prepared by and return to:
Dwight I. Cool, Esquire
Zimmerman, Kiser & Sutcliffe, P.A.
Post Office Box 3000
Orlando, Florida 32802-3000
Our File No. 9027-2

**AMENDMENT TO MASTER DECLARATION OF EASEMENTS,
COVENANTS, CONDITIONS AND RESTRICTIONS FOR FORMOSA GARDENS**

THIS AMENDMENT to Master Declaration of Easements, Covenants, Conditions and Restrictions for Formosa Gardens is made and entered into this 19th day of November, 2008, by Formosa Gardens Homes, Inc., a Florida corporation and Formosa Developer's, Inc., a Florida corporation, hereinafter referred to as "Declarants," whose address is 7836 W. Irlo Bronson Highway, Kissimmee, Florida 34747.

W I T N E S S E T H :

WHEREAS, American Eastern International Limited Partnership, a Florida limited partnership, caused to be recorded the Master Declaration of Easements, Covenants, Conditions and Restrictions for Formosa Gardens in Official Records Book 1037, Page 1864, Public Records of Osceola County, Florida (the "Declaration"); and

WHEREAS, the Declarants were designated and appointed successor Declarants under the Declaration, in that certain Appointment of Successor Declarants for Formosa Gardens, recorded in Official Records Book 1441, Page 1939, Public Records of Osceola County, Florida; and

WHEREAS, Declarants continue to own portions of the property subjected to the terms and provisions of the Declaration; and

WHEREAS, Declarants desire to amend the Declaration, pursuant to the terms and provisions of Paragraph 144 of the Declaration;

NOW, THEREFORE, Declarants hereby declare as follows:

1. Paragraph 107 of the Declaration is hereby deleted in its entirety, and the following is hereby substituted in its place:

107. Collection by Community Associations. Each Community Association shall include in its budget each year an amount sufficient to pay all Assessments for Common Expenses levied by the Master Association against each Property Unit within the jurisdiction of that Community Association. Each Community Association shall have the duty to collect these Assessments levied by the Master Association, in addition to levies imposed by that Community Association under its authority, if any. Each Community Association shall timely remit to the Master Association the total Assessments for Common Expenses for Property Units under the jurisdiction of that Community Association, regardless of whether or not any Owners have failed to pay any Assessments to that Community Association.

The Master Association may, solely at its option, grant a Community Association a grace period to collect unpaid Assessments from the delinquent Owner(s), in which event the Community Association shall immediately remit to the Master Association the portion of the Assessments that have been collected from the Owners. After expiration of the grace period for collections (if any), the Community Association shall immediately pay all unpaid Assessments to the Master Association, regardless of whether or not any Owners have failed to pay any Assessments to that Community Association, and the Community Association shall record a claim of lien for each delinquent Owner, on behalf of the Master Association, in accordance with Paragraph 113 of this Declaration, providing the Master Association with prompt written notification of its actions.

In the event any Community Association fails to pay any Assessment for Common Expenses, Special Assessments, interest, late fees, or other monies due to the Master Association within ten (10) days after the due date or (if no other due date is designated) within 10 days after delivery of written demand, the Master Association may take any action deemed necessary in order to collect the delinquent Assessments for Common Expenses, Special Assessments, interest, late fees, or other monies, including but not limited to retaining the services of a collection agency or attorney to collect those Assessments for Common Expenses, Special Assessments, interest, late fees, or other monies, or any other appropriate action. The Community Association shall be liable to the Master Association for all costs and expenses incurred by the Master Association incident to the collection of any Assessment for Common Expenses, Special Assessments, interest, late fees or other monies owed to it, and

the enforcement thereof, including but not limited to reasonable attorneys' fees, and attorneys' fees and costs incurred on the appeal of any lower court decision, reasonable administrative fees of the Master Association, and all sums paid by the Master Association for taxes. All payments received by the Master Association on account of any Assessments for Common Expenses, Special Assessments, interest, late fees, or other monies owed to it by any Community Association shall be first applied to payments and expenses incurred by the Master Association, then to interest, then to late fees, then to any unpaid Assessments for Common Expenses, Special Assessments, or other monies owed to the Master Association in the inverse order that such were due.

Notwithstanding any contrary provision herein, the Master Association may, at its sole discretion, (i) elect to collect Master Association Assessments and other charges either through the Community Association or directly from any Owner, and (ii) elect to enforce unpaid delinquent Assessments and other charges either against the Community Association (in accordance with this Paragraph 107) or directly against any Owner (in accordance with Paragraphs 112 and 113), or both.

2. Except as specifically modified herein, the Declaration shall remain in full force and effect.

IN WITNESS WHEREOF, the undersigned being the Declarants herein have executed this instrument as of the date first appearing above.

WITNESSES:

FORMOSA GARDENS HOMES, INC.
a Florida corporation

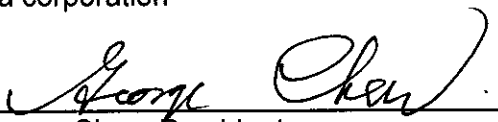


Printed Name: CHRISTINE DYKSTRA



Printed Name: James P. Spessberg

By:


George Chen, President

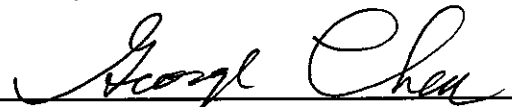
Address:

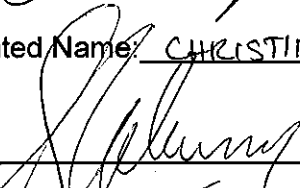
7836 W. Irlo Bronson Highway
Kissimmee, Florida 34747

WITNESSES:

FORMOSA DEVELOPER'S, INC.
a Florida corporation


Printed Name: CHRISTINE DYKSTRA

By: 
George Chen, President

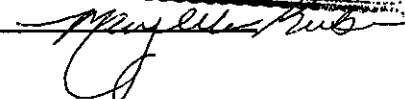

Printed Name: JAMES P. SALISBURY

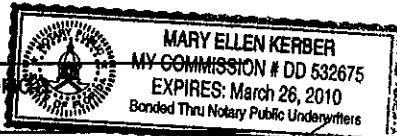
Address:
7836 W. Irlo Bronson Highway
Kissimmee, Florida 34747

STATE OF FLORIDA
COUNTY OF OSCEOLA

The foregoing instrument was acknowledged before me this 19th day of November, 2008 by George Chen, as President of Formosa Gardens Homes, Inc., a Florida corporation, on behalf of the corporation, who is ☒ personally known to me, or ☐ has produced _____ as identification.

(SEAL)

Notary Public, State of Florida
Printed Name: _____
My Commission expires: 



STATE OF FLORIDA
COUNTY OF OSCEOLA

The foregoing instrument was acknowledged before me this 19th day of November, 2008 by George Chen, as President of Formosa Developer's, Inc., a Florida corporation, on behalf of the corporation, who is ☒ personally known to me, or ☐ has produced _____ as identification.

(SEAL)

Notary Public, State of Florida
Printed Name: _____
My Commission expires: 